

Gender and space: On trans people's basic rights

Legal changes must **factor in** rights of **trans people**

In the **backdrop of** a rising trend of **decimation** of rights for people who do not fit into the **binary** of male and female, led by the U.S. administration, a recent U.K. Supreme Court **ruling** has further **polarised** the gender **debate**. In an 88-page judgment, five judges **unanimously ruled** that only biological women and not transwomen **meet** the definition of a woman under Britain's Equality Act 2010. In its limited scope of **deliberation**, it provided a "**statutory interpretation**" that the terms 'woman' and 'sex' in the Act refer only to a biological woman and the biological sex. A transwoman who has **undergone** a gender reassignment and has a gender recognition certificate as a woman for all purposes would lose the right to be treated as a biological woman. While the **appellants** in the case, For Women Scotland, funded in part by gender-critical writer J.K. Rowling, **celebrated** the **verdict** saying they had been **vindicated**, trans supporters and campaigners felt it was a **setback** for trans inclusion. There has been a **considerable** change in the **resolve** of the original **respondents**, The Scottish Ministers, too with the resignation of Scottish National Party leader Nicola Sturgeon in 2023. She had led the fight to change gender laws so that **those** with gender recognition certificates **could** be **entitled** to the same protections as biological women. But there was a **backlash** against gender recognition reforms after **a trans woman**, who had raped two women while she was a man, **was** initially sent to an all-female prison.

The ruling **made the point** that the Gender Recognition Act 2004 gives legal recognition to the rights of transgender people on marriage, pensions, retirement and social security, and that the equality law protects them against discrimination. **Kishwer Falkner**, the **chair** of the U.K.'s Equality and Human Rights Commission (EHRC), **said** the court's "clarity" means only "biological women could use single-sex changing rooms and women's toilets, or participate in women-only sporting events and teams, or be placed in women's wards in hospitals". But as the judges counselled against reading the judgment as a **triumph** for one or more groups in society at the expense of another, the EHRC should also ensure that **unisex** or neutral spaces are **earmarked** for trans people when it issues new guidelines. That **holds true** for all institutions, offices, hospitals and schools, planning restrictions. The ruling will have an impact on the sporting **arena** where athletics, cycling and **aquatics** have already banned transgender women from participating in women's events. As the experience with India's Transgender Persons (Protection of Rights) Act 2019 shows, any **changes** in the legal **framework must** factor in the trans people's basic rights or else they will face more **strictures**. **[Practice exercise]**

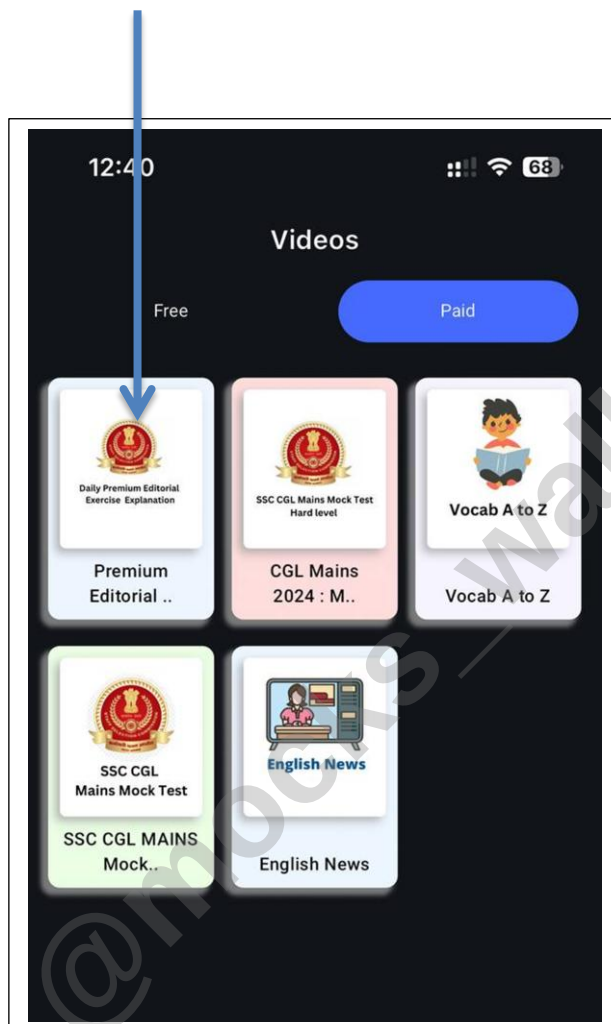
- Red/blue coloring of words in the sentence indicates subject verb relationship; where 'red' denotes 'subject' and 'blue' denotes 'verb'.

Vocabulary

1. **Factor in** (phrasal verb) – include, consider, take into account, account for, incorporate
ध्यान में रखना
2. **Trans people** (noun) – a person who is transgender. ट्रांसजेंडर व्यक्ति
3. **In the backdrop** (phrase) – against the background, in the context, amidst, surrounding, during पृष्ठभूमि में
4. **Decimation** (noun) – destruction, devastation, annihilation, reduction, obliteration विनाश / बड़ी क्षति
5. **Binary** (noun) – duality, dichotomy, twofold division, dual system, polarity द्वैध
6. **Ruling** (noun) – judgment, decision, decree, verdict, order निर्णय
7. **Polarise** (verb) – divide, separate, split, part, alienate ध्रुवीकरण करना
8. **Debate** (noun) – discussion, argument, dialogue, deliberation, controversy बहस
9. **Unanimously** (adverb) – collectively, without opposition, with one voice, all together, consensually सर्वसम्मति से
10. **Rule** (verb) – decide, judge, decree, determine, pronounce निर्णय देना
11. **Meet** (verb) – satisfy, fulfil, comply with, conform to, match पूरा करना
12. **Deliberation** (noun) – discussion, consideration, reflection, consultation, examination सोच-विचार
13. **Statutory interpretation** (noun) – the process by which courts interpret and apply legislation. वैधानिक व्याख्या
14. **Undergo** (verb) – experience, endure, go through, suffer, submit to गुजरना
15. **Appellant** (noun) – petitioner, complainant, plaintiff, claimant, challenger अपीलकर्ता
16. **Verdict** (noun) – judgment, decision, decree, ruling, pronouncement फैसला
17. **Vindicate** (verb) – justify, clear, defend, support, exonerate न्यायसिद्ध करना
18. **Setback** (noun) – obstacle, hindrance, reverse, blow, impediment बाधा / झटका
19. **Considerable** (adjective) – significant, substantial, sizeable, noteworthy, major महत्वपूर्ण
20. **Resolve** (noun) – determination, firmness, commitment, tenacity, resolution संकल्प
21. **Respondent** (noun) – defendant, answerer, accused, replier, opposite party प्रत्युत्तरदाता
22. **Entitle** (verb) – authorize, qualify, empower, enable, grant rights अधिकार देना

23. **Backlash** (noun) – adverse reaction, opposition, repercussion, resistance, counteraction प्रतिकूल प्रतिक्रिया
24. **Make the point** (phrase) – emphasize, assert, highlight, stress, underline मुद्दा प्रस्तुत करना / जोर देना
25. **Chair** (noun) – head, leader, chief, presiding officer, president अध्यक्ष
26. **Triumph** (noun) – victory, success, win, achievement, conquest विजय
27. **Unisex** (adjective) – designed for and used by both sexes स्त्री-पुरुष दोनों के लिए रचित या दोनों के द्वारा प्रयुक्त
28. **Earmark** (verb) – allocate, designate, reserve, assign, set aside आरक्षित करना
29. **Hold true** (phrase) – remain valid, apply, be applicable, stay relevant, continue to be the case सही रहना / लागू होना
30. **Arena** (noun) – domain, field, sphere, area, stage क्षेत्र / मंच
31. **Aquatic** (noun) – water sport, water activity, swimming, water-based event, marine competition जलक्रीड़ा
32. **Framework** (noun) – structure, system, outline, arrangement, setup ढांचा
33. **Stricture** (noun) – restriction, limitation, constraint, criticism, regulation प्रतिबंध / कड़ी आलोचना

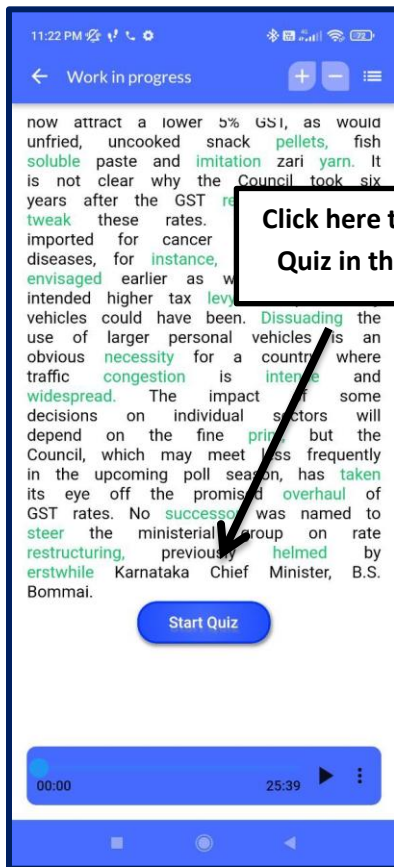
Video solution of Practice Exercise from this Editorial is exclusively available on App.



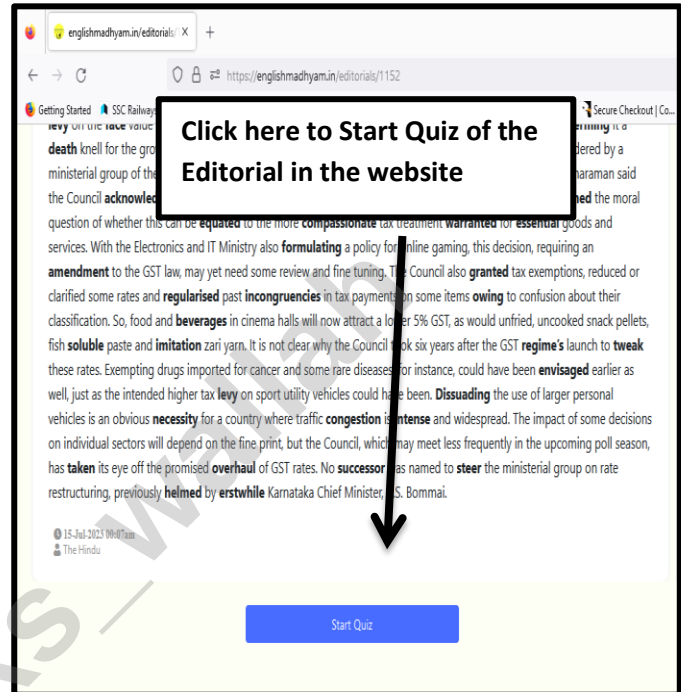
Summary of the Editorial

1. A global **erosion of rights** for people outside the male-female binary is underway, led notably by the **U.S. administration**.
2. The **U.K. Supreme Court** recently ruled that **only biological women** are covered under the definition of "woman" in the **Equality Act 2010**.
3. The judgment interpreted "woman" and "sex" in the Act to refer solely to **biological females**.
4. **Transwomen**, even with gender recognition certificates, are not considered **biological women** under this ruling.
5. The case was brought by **For Women Scotland**, supported in part by **J.K. Rowling**, and they celebrated the verdict.
6. **Trans rights supporters** saw the ruling as a significant **setback** to **trans inclusion** efforts.
7. The **Scottish government's** earlier resolve to expand trans rights weakened, especially after **Nicola Sturgeon's resignation** in 2023.
8. A backlash had occurred following a **controversial prison case** involving a transwoman convicted of rape before transitioning.
9. The court highlighted that the **Gender Recognition Act 2004** still grants trans people rights in **marriage, pensions, and social security**.
10. The **Equality and Human Rights Commission (EHRC)** said only **biological women** can access **single-sex spaces** like toilets, changing rooms, and hospital wards.
11. Judges warned against viewing the ruling as a **victory for one group** over another.
12. The EHRC was urged to promote **unisex or neutral spaces** to accommodate **trans people**.
13. **Institutions** like offices, hospitals, and schools must ensure **inclusive planning** under future legal frameworks.
14. The ruling is expected to significantly affect **sports**, where transgender women are already **banned** from participating in many **women's competitions**.
15. Drawing from India's **Transgender Persons (Protection of Rights) Act 2019**, any future legal changes must **uphold basic rights** of trans people to avoid increasing discrimination.

Practice Exercise: SSC Pattern Based



Click here to Start Quiz in the App



Click here to Start Quiz of the Editorial in the website

[Click here to download App](#)

[Click here to visit website](#)



Learn Vocabulary Through Reading Articles

English Madhyam